

26NNCV01437 26NNCV01437

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-07-29

Motion: DEFENDANT LOS ANGELES UNIFIED SCHOOL DISTRICT'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT; MOTION TO STRIKE

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Case Number: 26NNCV01437 Hearing Date: July 29, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

M.S.,

Plaintiff(s),

vs.

LOS
ANGELES UNIFIED SCHOOL DISTRICT, et al.,

Defendant(s).

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CASE NO.: 26NNCV01437

[TENTATIVE]

ORDER RE: DEFENDANT LOS ANGELES UNIFIED SCHOOL DISTRICT'S DEMURRER TO
PLAINTIFF'S FIRST AMENDED COMPLAINT; MOTION TO STRIKE

Dept.

3

8:30

a.m.

July 29,

2026

I. INTRODUCTION

On February

27, 2026, plaintiff M.S. ("Plaintiff") filed this action against Los Angeles Unified School District ("Defendant"). Plaintiff filed the operative First Amended Complaint ("FAC") on May 14, 2026, adding David Kwon ("Kwon") as a defendant. Plaintiff asserts causes of action for negligence per se, negligent supervision, and negligent hiring/retention arising from sexual abuse, harassment, and molestation while she was a student at Valley Oaks Center for Enriched Studies ("Valley Oaks") from about October 2023 through February 2024. (FAC, ¶¶ 1, 11.)

On

June 15, 2026, Defendant filed this demurrer to the entire FAC and moved to strike Paragraphs 59-67, which states Plaintiff's Third Cause of Action for "Negligent Hiring/Retention."

Plaintiff

filed opposition briefs on July 14, 2026.

Defendant

filed reply briefs on July 22, 2026.

II. LEGAL STANDARDS

A.

Demurrer

A demurrer tests the legal sufficiency of the pleadings and will be sustained only where the pleading is defective on its face. (*City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1998) 68 Cal.App.4th 445, 459.) "We treat the demurrer as admitting all material facts properly pleaded but not contentions, deductions or conclusions of fact or law. We accept the factual allegations of the complaint as true and also consider matters which may be judicially noticed. [Citation.]" (*Mitchell v. California Department of Public Health* (2016) 1 Cal.App.5th 1000, 1007; *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604 ["the facts alleged in the pleading are deemed to be true, however improbable they may be"].)

B.

Motion
to Strike

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage;

probative facts are surplusage and may be stricken out or disregarded”].) The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

III. DISCUSSION

A.

First

Cause of Action for Negligence Per Se

Plaintiff alleges that Defendant, as a child care custodian, was under a statutory duty to report known or suspected incidents of sexual molestation or abuse of minors to a child protective agency pursuant to Penal Code § 11166 (“CANRA”). (FAC, ¶ 40.) Plaintiff alleges Defendant knew or should have known that Kwon had molested or abused other minors, including Plaintiff, giving rise to a duty to report such conduct under CANRA. (FAC, ¶¶ 41-42.) Plaintiff also claims that Defendant is vicariously liable for Kwon’s failure to comply with his mandatory reporting requirements. (FAC, ¶ 49.)

Defendant, a public entity, demurs to Plaintiff’s First Cause of Action for negligence per se on the grounds that she fails to allege an appropriate statutory basis for imposing liability upon it because CANRA only applies to individuals, not a public entity. (Demurrer, p. 9; *Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1127.) Defendant also argues that Plaintiff’s claim is not pleaded with sufficient particularity because Plaintiff only presents conclusory allegations to imply the existence of a CANRA duty to report instead of specific school employees. (*Lopez v. Southern California Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795; citing *Peter W. v. San Francisco Unified Sch. Dist.* (1976) 60 Cal.App.3d 814, 819.) Defendant argues that Plaintiff fails to allege facts establishing that any of its employees actually knew or suspected the sexual abuse which would trigger the employee’s CANRA duty. (Demurrer, p. 12; *Roe v. Hesperia* (2022) 85 Cal.App.5th 13, 30.)

In opposition, Plaintiff argues that her theory of liability rests on Government Code section 815.2 and expressly

cites this statute as the source of Defendant's duty. (FAC, ¶ 34(a); Opp., p. 3.) However, the only reference to Government Code § 815.2 in the FAC is in Paragraph 34(a) and it is described as a duty to "use reasonable care to protect students from known or foreseeable dangers." This is not an accurate recitation of the statute. Rather, the text of section 815.2 states that a public entity is liable for injury proximately caused by an act or omission of an employee within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative. For this reason alone, the demurrer to the First Cause of Action is SUSTAINED.

There are other reasons why the First Cause of Action fails. First, Plaintiff argues that Defendant is vicariously liable for an employee's failure to comply with CANRA, including Kwon's duty to report himself. But a perpetrator's failure to report his or her own abuse does not impose liability on a school district. (Kassey S. v. City of Turlock (2013) 212 Cal.App.4th 1276, 1280.) Second, the FAC identifies the specific employees who received actual notice of Kwon's abuse directly from Plaintiff: "an intern for school counselor Camille Calloway and Vice Principal Ivania Holodnak", but fails to allege that these employees received notice of Kwon's dangerous propensities before any harm occurred. (FAC, ¶ 21; Opp., p. 5.) Plaintiff alleges that these individuals received actual notice on or about February 21, 2024, whereas Defendant was allegedly aware or should have suspected abuse occurring before October 2023. While Plaintiff alleges that Defendant knew or should have known that Kwon had participated in similar harassment and participated in inappropriate group chats, these allegations alone do not give rise to a reasonable inference that Defendant's supervisory personnel would have known about this conduct or were in a position to discover it.

Therefore, the demurrer to the First Cause of Action is SUSTAINED with leave to amend.

B.

Second

Cause of Action for Negligent Supervision and Third Cause of Action for Negligent Hiring/Retention

Defendant argues that Plaintiff's other two claims are insufficiently pled. Plaintiff's claim for negligent supervision includes allegations that Defendants failed to supervise Kwon and did not

implement a system or procedure to reasonably investigate, supervise and monitor him to prevent pre-sexual grooming and sexual harassment, nor did it implement a system or procedure to oversee or monitor conduct towards minors and students. (FAC, ¶¶ 54-55.) There are no facts supporting an allegation of actual or constructive notice. (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 867 [multiple incident reports made reporting sexual misconduct of guidance counselor].)

In contrast, with respect to Plaintiff's Third Cause of Action for Negligent Hiring/Retention, Plaintiff alleges that Defendant failed to engage in a meaningful and adequate investigation of Kwon's background and that Defendant should have known that Kwon had engaged in dangerous and inappropriate conduct, both before his employment with Defendant and during, because other third parties, minors, students, law enforcement officials, and parents informed Defendant of inappropriate conduct. (FAC, ¶¶ 64-65.)

However, even though Plaintiff alleges a factual basis for Defendant's actual or constructive knowledge in support of her Third Cause of Action, the demurrer to the Second and Third Causes of Action are both SUSTAINED because Plaintiff fails to allege a statutory basis for liability. As stated above, Plaintiff claims in her opposition brief that liability is based on Government Code § 815.2, but the FAC incorrectly refers to section 815.2 as the "[d]uty to use reasonable care to protect students from known or foreseeable dangers." (FAC, ¶ 34(a).)

Therefore, Defendant's demurrer to the Second and Third Causes of Action is SUSTAINED with leave to amend.

C.

Motion
to Strike

The motion to strike is DENIED as moot because it is duplicative of Defendant's demurrer to the Third Cause of Action and the Court sustains Defendant's demurrer to the Third Cause of Action.

IV. CONCLUSION

Defendant's demurrer to the FAC is

SUSTAINED with 20 days' leave to amend.

Defendant's motion to strike is DENIED
as moot.

Moving party to give notice.

Dated
this 29th
day of July
2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.